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**MIT WORLD PEACE
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TECHNOLOGY, RESEARCH, SOCIAL INNOVATION & PARTNERSHIPS

CASE STUDY ON ADMINISTRATIVE LAW & ADMINISTRATIVE BODIES

CCA 1

SY LLB

THE ELECTION COMMISSION OF INDIA

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Website Front Page of the Election Commission of India

Menu | Toll Free - 1950 | Screen Reader Access | Skip to Main Content | हिंदी में देखें

SIR-2026 | Download Electoral Roll | Search Your Name in Last SIR | Search your name in E-Roll | Search

The first copy of the ECIs Coffee Table Book "Chunav Ka Parv Bihar ka Garv - A Journey : Bihar Assembly Elections 2025" was presented to the Hon'ble President by the CEC Shri Gyanesh Kumar

Myth Vs Reality | Election Results | Press Releases

Electors | Political Parties/Candidates | Election Management | Media & Publications | Voter Education | ICT APPS

HON'BLE COMMISSION

Shri Gyanesh Kumar
Chief Election Commissioner

Dr. Sukhbir Singh Sandhu
Election Commissioner

Dr. Vivek Joshi
Election Commissioner

CEC Gyanesh Kumar assumes Chairship of Council of Member States of International IDEA 2026

A CONFLUENCE OF DEMOCRACIES
भारत का अंतरराष्ट्रीय महसंगम
IICDEM

भारत निर्वाचन आयोग
Election Commission of India
SWEEP
मैं भाग हूँ
हम भारत के मतदाता हैं
भारतीय लोकतंत्र का उत्तम समाने के लिए
भारत निर्वाचन आयोग का मीत

The screenshot displays the Election Commission of India (ECI) website. The top navigation bar includes a 'Menu' icon, a home icon, a toll-free number (1950), social media links, a 'Screen Reader Access' button, a 'Skip to Main Content' button, and a language selector set to 'हिंदी में देखें'.

The main content area is divided into three sections:

- Current Issues:** A list of recent news items, each with a date, time, and PDF link. The items are:
 - ECI Organises first All India Media Conference (Friday 17 Jul 2026, 8:36 PM | PDF | 123 KB)
 - ECI holds Third One-Day Conference for Media and Communication Officers (Wednesday 08 Jul 2026, 6:50 PM | PDF | 118 KB)
 - Bye-elections to the Legislative Assemblies of Madhya Pradesh, Gujarat and Bihar Filing of nominations begin (Monday 06 Jul 2026, 6:03 PM | PDF | 134 KB)
 - Bye Elections to the Council of States from West Bengal -reg. (Monday 06 Jul 2026, 10:01 AM | PDF | 1,014 KB)
 - ECI holds Second One-Day Conference for Media and Communication Officers (Saturday 04 Jul 2026, 12:44 PM | PDF | 120 KB)
 A 'View More' button is located at the bottom right of this section.
- POLITICAL PARTY/CANDIDATE:** A central section with a 'New Party Registration' button and a 'Know More' button at the bottom.
- Electors:** A section on the left with buttons for 'Register Now To Vote', 'Check Application Status', 'Know Your Polling Booth', 'Search Name in Voter list', and 'Register Complaint'. A 'Know More' button is at the bottom.
- ECI OFFICIALS:** A section on the right with buttons for 'Handbooks/Manuals/Checklist', 'Compendium of Instructions', 'Postal Ballots', 'Service Voter Portal', and 'Observer Portal'. A 'Know More' button is at the bottom.

The bottom of the page features a banner with the text 'Visit Our State CEO's Website to Get State Specific Information & Updates' and a map of India. To the right, there is a 'Current Elections' section with an upward arrow icon.

Contribution Statement

The following table records the specific contribution made by each group member towards this report:

Name / PRN	Part(s) Contributed	Specific Work Done
<i>Akshat Sharma</i>	<i>Part A</i>	<i>Put together a quick overview of the ECI's legal setup - Article 324 basis, appointment process (Anoop Baranwal case + 2023 Act), tenure/removal rules, and its powers</i>
<i>Khushi Kashyap</i>	<i>Part B</i>	<i>Carried out an in-depth case-law analysis of four landmark decisions - Mohinder Singh Gill, T.N. Seshan, Anoop Baranwal, and Association for Democratic Reforms - critically examining how key administrative law doctrines (discretionary power, natural justice, judicial review, and transparency) shape and constrain the ECI's functioning. This forms the analytical core of the project, tracing the doctrinal evolution of judicial oversight over the Commission.</i>
<i>Suhani Gupta</i>	<i>Part C</i>	<i>Carried out critical evaluation of the ECI's independence, effectiveness, and procedural fairness (including the Model Code of Conduct and electoral bonds issues), drafted policy recommendations, and compiled the conclusion and final report.</i>

Part A: Legal and Institutional Framework

1. Basis of Establishment

The Election Commission of India ("ECI") is a permanent, independent constitutional authority created under Article 324 of the Constitution of India, which falls within Part XV ("Elections"). The ECI commenced functioning on 25th January 1950, a day now commemorated as National Voters' Day. Article 324(1) vests in the Commission the "superintendence, direction and control" of elections to Parliament, the State Legislatures, and the offices of President and Vice-President. Elections to municipalities and panchayats are, by contrast, entrusted to separate State Election Commissions under Part IX and Part IXA - a distinction that confines the present study to the ECI as a Union-level constitutional body. The Commission's day-to-day functioning is further shaped by ordinary legislation, principally the Representation of the People Act, 1951, the Conduct of Election Rules, 1961, and the Election Symbols (Reservation and Allotment) Order, 1968, which together operationalize the broad constitutional mandate of Article 324.

2. Composition and Appointment

From 1950 to 1989 the ECI functioned as a single-member body headed only by the Chief Election Commissioner ("CEC"). It was made multi-member in October 1989, briefly reverted to a single-member structure, and was again made multi-member in October 1993 - a change tested in *T.N. Seshan v. Union of India* (Part B). Today the Commission consists of the CEC and two Election Commissioners ("ECs"), all enjoying equal decision-making power on a majority basis. Historically, appointments were made by the President on the advice of the Prime Minister, since Article 324(2) leaves the process open to parliamentary law, which for over seven decades was never enacted. This gap was addressed in *Anoop Baranwal v. Union of India* (2023), which directed appointment on the recommendation of a three-member committee - the Prime Minister, the Leader of the Opposition, and the Chief Justice of India - pending legislation. Parliament's subsequent Chief Election Commissioner and Other Election Commissioners (Appointment, Conditions of Service and Term of Office) Act, 2023, replaced the Chief Justice of India with a Union Cabinet Minister nominated by the Prime Minister, leaving the committee weighted 2:1 in favor of the Executive - a change that remains under judicial challenge.

3. Tenure and Removal

The CEC and ECs hold office for a term of six years, or until attaining the age of 65 years, whichever is earlier, and enjoy salary, allowances and status equivalent to a Judge of the Supreme Court. To secure independence, the proviso to Article 324(5) protects the CEC from removal except "in like manner and on the like grounds" as a Judge of the Supreme Court - that is, by presidential order following a resolution passed by both Houses of Parliament with a special majority, on the ground of proved misbehavior or incapacity - and bars any variation in the CEC's service conditions to his disadvantage after appointment. An EC, however, cannot be removed except on the recommendation of the CEC, a structural asymmetry examined critically in Part C.

4. Powers, Duties, and Jurisdiction

Beyond conducting elections and preparing and revising electoral rolls, the ECI exercises quasi-judicial functions, such as resolving disputes over the allotment of election symbols and recognition of political parties under the Symbols Order, 1968, and registering political parties under Section 29A of the Representation of the People Act, 1951. It also performs quasi-legislative functions through the Model Code of Conduct and rule-making under the election statutes. Critically, in the landmark decision of *Mohinder Singh Gill v. Chief Election Commissioner* (discussed below), the Supreme Court recognized that Article 324(1) confers a plenary, residuary power on the Commission, enabling it to act even where the enacted law and rules are silent, so long as such action is necessary to ensure free and fair elections. This combination of administrative, quasi-judicial and quasi-legislative functions makes the ECI a paradigmatic subject for administrative law analysis, which forms the basis of Part B.

Part B: Administrative Law Analysis

As a body performing overlapping administrative, quasi-judicial and quasi-legislative functions, the ECI's conduct has repeatedly attracted scrutiny under core administrative law doctrines - discretionary power, natural justice, transparency and judicial review. Four decisions illustrate this.

1. Administrative Discretion and Plenary Power - *Mohinder Singh Gill v. Chief Election Commissioner* (1978) 1 SCC 405

Here, the ECI had cancelled a parliamentary poll mid-count following allegations of large-scale booth capturing, without a specific statutory provision authorizing cancellation at that stage. The Supreme Court upheld the action, holding that Article 324(1) is a reservoir of plenary power filling gaps left by the Representation of the People Act and its Rules, so the Commission may take steps necessary to secure free and fair elections. Yet the Court made clear this discretion is not unfettered: action under Article 324 remains subject to the rule against arbitrariness and, where an order visits civil consequences on a candidate, the principle of *audi alteram partem*. The case illustrates the classic tension between wide discretion for a specialized body and the discipline of natural justice and reasonableness.

2. Internal Procedural Fairness and Collegial Decision-Making - *T.N. Seshan v. Union of India* (1995) 4 SCC 611

This case arose after the Union Government, in 1993, converted the ECI into a three-member body and appointed two new Election Commissioners, a move the then CEC, T.N. Seshan, challenged as an executive attempt to dilute his authority in retaliation for his strict enforcement of the Model Code of Conduct against the ruling party. The Supreme Court upheld the constitutional validity of the multi-member structure, holding that Article 324(2) expressly contemplates such a body, and that the change could not be struck down merely because it followed friction between the CEC and the government. Importantly, the Court held that the CEC is not superior to the other Election Commissioners but is only "first among equals," with decisions of the Commission to be taken by majority. The judgment therefore reinforces an internal administrative-law value - collegial, non-

arbitrary decision-making within a multi-member regulatory body - as a check against the concentration of unilateral power in a single office-holder.

3. Judicial Review of Institutional Design - Anoop Baranwal v. Union of India, 2023 SCC OnLine SC 216

Decided by a Constitution Bench on 2nd March 2023, this case addressed the long-standing absence of a parliamentary law under Article 324(2) governing appointments to the ECI. The Court held that where a constitutional functionary (here, Parliament) fails to act and a resulting vacuum threatens the independence of a body performing a vital public function, the judiciary may step in to prescribe an interim mechanism, drawing on the precedent set in *Vineet Narain v. Union of India* for the appointment of the CBI Director. The Bench accordingly directed that appointments be made on the recommendation of a committee comprising the Prime Minister, the Leader of the Opposition, and the Chief Justice of India, until superseded by parliamentary legislation. The judgment is significant for administrative law because it treats the process of appointing members of a regulatory body as itself a matter amenable to judicial review, on the reasoning that an appointments process dominated entirely by the Executive undermines the neutrality that Article 324 was designed to protect. The subsequent 2023 Act's substitution of the Chief Justice of India with a Cabinet Minister nominee, discussed above, illustrates the continuing contest between legislative primacy and judicial efforts to insulate independent bodies from executive control.

4. Transparency and the Citizen's Right to Know - Union of India v. Association for Democratic Reforms (2002) 5 SCC 294

Here, the Supreme Court held that a voter's right to know the antecedents of a candidate - including criminal records, assets and liabilities, and educational qualifications - is part of the freedom of speech and expression under Article 19(1)(a), since an informed vote is essential to genuine democratic choice. The Court directed the ECI to require candidates to file such information by way of affidavit, a direction the Commission implemented through amendments to the nomination process even before corresponding statutory amendments were made. The decision (reaffirmed in *People's Union for Civil Liberties v. Union of India*) demonstrates how judicial review can be used not merely to restrain administrative excess but affirmatively to compel a body such as the ECI toward greater transparency and public accountability in the exercise of its functions.

Together, these decisions show administrative law operating on the ECI at three levels: constraining and legitimising its discretionary powers (*Gill*), securing fair internal decision-making (*Seshan*), and using judicial review to correct gaps in institutional design (*Baranwal*) and compel transparency (*ADR*). Continuing disputes after each intervention show that doctrine alone has not fully resolved accountability concerns, examined next.

Part C: Critical Evaluation and Recommendations

1. Independence

The ECI enjoys strong post-appointment independence: the CEC's removal protection mirrors that of a Supreme Court Judge, and service conditions cannot be varied to an incumbent's disadvantage. Independence at the point of entry, however, is weaker. The 2023 Act's selection committee gives the Union Executive two of three votes (Prime Minister and a Cabinet Minister nominee, against the Leader of the Opposition), markedly different from the balanced committee the Supreme Court prescribed in *Anoop Baranwal*. This creates a structural paradox: a body insulated once in office may still be substantially shaped, at the selection stage, by the very Executive it is meant to regulate.

2. Effectiveness

Operationally, the ECI has an impressive record, conducting elections across the world's largest electorate with a high degree of logistical competence, having introduced Electronic Voting Machines and voter-education initiatives such as National Voters' Day, and maintaining broad public confidence in the counting and declaration of results. Its plenary power under Article 324(1), as recognised in *Mohinder Singh Gill*, has allowed it to respond flexibly to problems not anticipated by the Representation of the People Act.

3. Procedural Fairness and Implementation Gaps

Two gaps stand out. First, the Model Code of Conduct - the ECI's principal tool for regulating campaign conduct - has no direct statutory backing; it operates through the moral authority of the Commission and the cooperation of political parties, which has periodically led to criticism of delayed or inconsistent enforcement, particularly against parties in power at the Centre or in the States. Second, the Commission's oversight of political finance has proved limited: the electoral bonds scheme, intended to bring transparency to political funding, was itself struck down by the Supreme Court in 2024 as unconstitutional for enabling anonymous corporate donations, exposing a longer-standing gap in the ECI's capacity to regulate money power in elections. The internal asymmetry between the CEC's strong removal protection and an EC's comparatively weaker protection (removable on the CEC's recommendation) has also, in practice, been associated with concerns about an individual Commissioner's ability to record independent dissent within the body.

4. Recommendations

- Restore a broader, more insulated selection committee for appointing the CEC and ECs - for instance, reinstating the Chief Justice of India or an equivalent neutral member, as originally directed in *Anoop Baranwal* - to correct the present 2:1 executive weightage.
- Confer express statutory backing on the Model Code of Conduct through amendment to the Representation of the People Act, 1951, prescribing clear, time-bound, and enforceable sanctions for violations, rather than relying solely on moral suasion.

- Extend an unambiguous, CEC-independent removal safeguard to Election Commissioners, so that their security of tenure does not depend on the CEC's recommendation, thereby protecting the capacity for independent dissent within the Commission.
- Strengthen the ECI's statutory powers to audit political-party finances and mandate comprehensive donor disclosure, particularly following the invalidation of the electoral bonds scheme.
- Require the Commission to publish reasoned, written orders in its quasi-judicial determinations (symbol allotment, party recognition, and related disputes), so as to improve procedural fairness and facilitate more effective judicial review.

5. Conclusion

The ECI illustrates, with unusual clarity, how constitutional text, legislation, and judicial review interact to shape the powers and accountability of a body performing a vital public function. Its post-appointment insulation and operational competence are considerable strengths, consistent with the design of Article 324. Yet the executive-weighted appointment process, the non-statutory character of the Model Code of Conduct, and gaps in regulating political finance show that formal independence alone does not guarantee full accountability. Meaningful reform must address institutional design at the point of appointment and the enforceability of its regulatory instruments, not merely its conduct once in office.

References

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1. The Constitution of India, art. 324.
2. The Representation of the People Act, 1951.
3. The Conduct of Election Rules, 1961.
4. The Election Symbols (Reservation and Allotment) Order, 1968.
5. The Chief Election Commissioner and Other Election Commissioners (Appointment, Conditions of Service and Term of Office) Act, 2023.

Cases Referred

1. Mohinder Singh Gill v. Chief Election Commissioner, (1978) 1 SCC 405.
2. T.N. Seshan, Chief Election Commissioner of India v. Union of India, (1995) 4 SCC 611.
3. Union of India v. Association for Democratic Reforms, (2002) 5 SCC 294.
4. People's Union for Civil Liberties v. Union of India, (2003) 4 SCC 399.
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1. Election Commission of India, Official Website, available at: <https://www.eci.gov.in> (last visited 12 August 2026).
2. Drishti Judiciary, "Election Commission of India: Article 324 to 329," available at: <https://www.drishtijudiciary.com/important-institutions/election-commission-of-india>.
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5. Lawctopus, "Anoop Baranwal v. Union of India: Ensuring Independence of Chief Election Commissioner," available at: <https://www.lawctopus.com/clatalogue/clat-pg/anoop-baranwal-v-union-independence-of-election-commission/>.
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